

24STCV34271 24STCV34271

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 24STCV34271 Hearing Date: July 1, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311 (formerly 19)

Tentative

Ruling

24STCV34271

NADYA

M. SANCHEZ vs FCA US, LLC, et al.

July

1, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION TO COMPEL PLAINTIFF NADYA M. SANCHEZ'S INITIAL RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE (1) AND REQUEST FOR SANCTIONS IN THE AMOUNT OF \$608.00.

RULING:

The Court grants the unopposed Motion.

On or before August 3, 2026, Plaintiff shall serve initial responses and produce documents, without objections, and in full compliance with the California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Defendant's Requests for Production of Documents, Set 1.

On or before that same date, Plaintiff NADYA M. SANCHEZ, and Strategic Legal Practices, APC, jointly and severally, shall pay discovery sanctions in the sum of \$608.00 to Defendant FCA US, LLC, the Court finding an absence of substantial justification. (E.g., Code Civ. Proc., § 2023.030.)

Moving Defendant to give notice.

I.

BACKGROUND

On December 27, 2024, NADYA M. SANCHEZ (Plaintiff) filed a Lemon Law Complaint against FCA US, LLC. and PREMIER CHRYSLER DODGE JEEP RAM OF BUENA PARK (Defendants), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with claims for Fifth Cause of Action for Negligent Repair, and a Sixth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiff alleges purchasing, with warranty provisions, a 2021 Jeep Wrangler Unlimited that Defendant manufactured, which had defects, including engine, transmission and electrical. Plaintiff further alleges that Defendants failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On June 8, 2026, FCA US, LLC filed the Motion for Order Compelling Plaintiff's verified responses to Request for Production of Documents, Set One, and awarding sanctions against Plaintiff

and counsel in the sum of \$608.00.

The Court's official
docket shows that Plaintiff has filed no Opposition.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., § 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

III.

ANALYSIS

Defendant reports that
Plaintiff refuses to respond to Document Requests even after meeting and conferring.

The failure to file a
proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.)

"If the party seeking a
monetary sanction meets its burden of proof, the burden shifts to the opposing party attempting to avoid a monetary sanction to show that it acted with 'substantial justification.'" (Doe v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

Here, Plaintiff has filed
no Opposition to contest the Motion's sufficient showing.

IV.

CONCLUSION

Accordingly, the Court grants
the Motion, for reasons stated.